23STCV10179 23STCV10179

County: los-angeles

Division: Civil Law and Motion

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Case Number: 23STCV10179 Hearing Date: July 29, 2026 Dept: 734

The following tentative ruling is issued pursuant to Rule of Court 3.1308 at 12:19 PM on July 28, 2026.

Rule of Court 3.1308(a)(1) provides that a "tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given."

The Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No later than 4:00 p.m. on July 28, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by email to , with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff alleges Defendants have designed, manufactured and sold defective windows, glass doors, and glass railings.

Various

parties have filed Cross-Complaints for indemnity, etc.

Cross-Defendant
PRL Glass Systems, Inc. demurs to the Cross-Complaint filed by Cross-Complainant Vision Mirror & Glass, Inc. and Amir Levi.

TENTATIVE RULING

Cross-Defendant
PRL Glass Systems, Inc.'s demurrer to the Cross-Complaint filed by Cross-Complainant Vision Mirror & Glass, Inc. and Amir Levi is OVERRULED as to the first, second and eighth causes of action and SUSTAINED as to the fourth cause of action for contribution, without prejudice to asserting the cause of action when it ripens.

Cross-Defendant
PRL Glass Systems, Inc. is to answer the remaining allegations of the Cross-Complaint within 10 days.

ANALYSIS

Demurrer

Meet and Confer

The Declaration
of Chanh T. Than reflects that Cross-Defendant's counsel satisfied the meet and confer requirement set forth in Civ. Proc. Code, § 430.41.

Discussion

The Court has
reviewed the moving, opposing and reply briefs filed by the parties, but only addresses the points which the Court deems to be material to the disposition of this motion.

Cross-Defendant
PRL Glass Systems, Inc. demurs to the Cross-Complaint filed by Cross-Complainant Vision Mirror & Glass, Inc. and Amir Levi.

1. First
Cause of Action (Implied Indemnity); Second Cause of Action (Equitable Indemnity);

Third Cause of Action (Contribution); Eighth Cause of Action (Declaratory Relief).

Cross-Defendant argues that the Cross-Complaint is uncertain. Cross-Defendant argues that Vision has pled entirely generic, catch-all causes of action without any specific Cross-Defendants in mind only to fill in the blanks years later. As a result, in addition to failing to plead sufficient facts to state its indemnity and contribution causes of action, Vision has failed to plead whatever facts it does allege with reasonable precision and particularity to acquaint Cross-Defendants with the nature and extent of its claims. Instead, Vision offers only unintelligible allegations and insufficiently supported legal contentions, deductions, and conclusions. Vision does not identify which Cross-Defendant performed which alleged action (nor when or how). Vision then states its factually unsupported legal conclusion that the unspecified Cross-Defendants are somehow "in some manner legally responsible for the acts and omissions alleged herein, and actually and proximately caused and contributed to the various injuries and damages referred to herein." (Id.). Vision thus not only had no specific Cross-Defendants in mind when it drafted its Cross-Complaint, but it also had no specific acts or omissions or damages in mind as well. It is thus not surprising that Vision only reiterates generic elements of a tort instead of alleging facts with reasonable precision and particularity. Vision does not identify which Cross Defendant entered into what type of agreement, nor whether such agreement was with Plaintiff, Vision, or both. Vision also does not specify of what "all terms and conditions, among other things" consist. Vision fails to specify for which liabilities it is entitled to contribution, and from which Cross Complainant(s) it is entitled to contribution. Vision even fails to specify what type of liability it is referring to; presumably it refers to joint liability, but joint liability contradicts its contention that it should be able to entirely avoid payment of any sum to Plaintiff.

Cross-Defendant argues that the equitable and implied indemnity causes of action are predicated on the pre-existence of a determination of liability and actual monetary loss arising from such liability. Here, Vision does not allege that it has suffered an actual monetary loss as a result of the underlying litigation. Indeed, Vision's Cross-Complaint alleges just the opposite, i.e., that Vision speculates that it could suffer actual monetary losses "if any, for any sums paid by way of settlement, or in the alternative, any judgement" from the underlying action.

Cross-Defendant argues that as to the contribution cause of action, as with its indemnity causes of action, Vision does not allege that there was any determination of joint liability in the underlying action, nor that it has paid more than its pro rata share of such a determination.

Cross-Defendant
argues that, as to Vision's cause of action for declaratory relief, which is derivative of its "theories of express indemnity, equitable indemnity, and contribution," this cause of action fails to state a cause of action because those theories do not state a cause of action.

In construction
cases, indemnity and declaratory relief claims are properly asserted by way of cross-complaint even though they have not yet accrued for purposes of the statute of limitations:

Valley Circle contends that permitting a cross-complaint for indemnity under section 337.15, subdivision (c) is consistent with the common law rule that a cause of action for indemnity does not accrue until the indemnitee has suffered a loss through payment of an adverse judgment or settlement. We agree.

"[The] governing authorities, both in California and throughout the country, uniformly hold that a tort defendant's equitable indemnity action is separate and distinct from the plaintiff's tort action. The indemnity action, unlike the plaintiff's claim, does not accrue for statute of limitations purposes when the original accident occurs, but instead accrues at the time the tort defendant pays a judgment or settlement as to which he is entitled to indemnity." (Citations omitted)

A tort defendant retains the right to seek equitable indemnity from another tortfeasor even if the plaintiff's action against the cross-defendant is barred by the statute of limitations. (Citations omitted.) Moreover, a defendant may cross-complain for indemnity against a previously unnamed third party. (Citations omitted.) Further, a cross-complaint for indemnity properly takes the form, adopted by defendant in the present case, of an action for declaratory relief. (Citations omitted.)

Finally, "the fact that a defendant is permitted under a third party procedure to bring a declaratory cross-complaint in the original tort action does not alter the general rule that, for statute of limitations purposes, the defendant's indemnity action does not accrue until he has suffered actual loss through payment." (Citations omitted".)

. . .

III

Section 337.15 reflects a legislative preference that actions for indemnity in the construction industry be brought by cross-complaints rather than direct actions. This permissible legislative preference is consistent with the policies underlying the right to indemnification and the purpose and utility of cross-complaints.

[*614] . . .

Furthermore, the practical advantage of requiring that actions for indemnity be brought by way of cross-complaint is the consolidation of related evidence and matters of proof in a single judicial proceeding. (Citation omitted.) In the present case, the matters set forth in, and the evidence to be produced in proof of, the Zeleznicks' claim is the same as under Valley Circle's cross-complaint against VTN -- that is, whose negligence, if any, resulted in the soil subsidence which damaged plaintiff's home. The cross-complaint serves the purpose of permitting a complete determination of the dispute among all the parties, thus avoiding circuity of proceedings. (Citations omitted.) Combining these causes in a single trial is an efficient utilization of limited judicial resources.

[*615] . . .

Section 337.15 permits all defendant general contractors in an action timely sued under subdivision (a) to cross-complain for indemnity against their subcontractors pursuant to subdivision (c). We conclude that this equitable legislative determination is final.

The judgment is reversed.

(Valley Circle Estates v. Vtn Consol.
(1983) 33 Cal. 3d 604, 611-15 [bold emphasis added].)

The Court can
bifurcate trial on the Cross-Complaints following judgment on the original Complaint.

Although the trial court retains the authority to postpone the trial of the indemnity question if it believes such action is appropriate to avoid unduly complicating the plaintiff's suit, the court may not preclude the filing of such a cross-complaint altogether.

(American Motorcycle Assn. v. Superior Court, 20 Cal. 3d 578, 584 (1978), superseded by statute on other grounds as stated in Miller v. Stouffer (1992) 9 Cal. App. 4th 70.)

The Cross-Complaint alleges:

8. Cross-Complainant supplied glass products for installation during the construction of a single family home on property located at 27318 Winding Way, Malibu, California 90265 (the "Subject Project"). Cross-Complainant is informed and believes that Alexander Elnekaveh, individually and/or as Trustee of the Alexander Elnekaveh Living Trust ("Plaintiff") is owner of the Subject Property. Such construction shall be referred to as "the Project". The glass products were supplied to the Project pursuant to a contract between Cross-Complainant and Defendant and Cross-Complainant VISION MIRROR & GLASS, INC. ("Vision").

(Cross-Complaint, ¶ 8.)

This allegation specifies the contract pursuant to which Cross-Complaint provided glass products to the project. This is sufficient to put Cross-Defendants on notice as to whether a defense exists as to claims for indemnity relative to the glass products. The details may be ascertained through discovery.

A demurrer for uncertainty is properly sustained where the complaint is so vague or uncertain that the defendant cannot reasonably respond, i.e., when the defendant cannot determine what issues must be admitted or denied, or what counts are directed against the defendant. (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616; Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial, supra, ¶ 7:85.) Demurrers for uncertainty are disfavored and strictly construed "because ambiguities can reasonably be clarified under modern rules of discovery." (Lickiss v. Financial Industry Regulatory Authority (2012) 208 Cal.App.4th 1125, 1135.)

As such, the demurrer to the first, second and eighth causes of action is OVERRULED.

b. Fourth Cause of Action for Contribution

As to contribution,
the cause of action requires that a judgment have been rendered and fully satisfied by a judgment debtor:

(a) Where a money judgment has been rendered jointly against two or more defendants in a tort action there shall be a right of contribution among them as hereinafter provided.

(b) Such right of contribution shall
be administered in accordance with the principles of equity.

(c) Such right of contribution may be
enforced only after one tortfeasor has, by payment, discharged the joint judgment or has paid more than his pro rata share thereof. It shall be limited to the excess so paid over the pro rata share of the person so paying and in no event shall any tortfeasor be compelled to make contribution beyond his own pro rata share of the entire judgment.

(d) There shall be no right of contribution
in favor of any tortfeasor who has intentionally injured the injured person.

(e) A liability insurer who by payment
has discharged the liability of a tortfeasor judgment debtor shall be subrogated to his right of contribution.

(f) This title shall not impair any
right of indemnity under existing law, and where one tortfeasor judgment debtor is entitled to indemnity from another there shall be no right of contribution between them.

(g) This title shall not impair the
right of a plaintiff to satisfy a judgment in full as against any tortfeasor judgment debtor.

(Code Civ. Proc., § 875 [bold emphasis added].)

The complaint before us seeks to enforce an entirely different
right belonging to Coca-Cola, one that had

not come into existence at the time Lucky obtained the summary judgment upon which it here relies. There is a distinction to be made between indemnity and contribution as those terms are applied in California.

Indemnity either imposes the entire loss on one of two or more tortfeasors or apportions it on the basis of comparative fault. Contribution, on the other hand, is a creature of statute and distributes the loss equally among all tortfeasors. The former requires a determination of fault on the part of the alleged indemnitor; the latter requires a showing that one of several joint tortfeasor judgment debtors has paid more than a pro rata share of a judgment. Where a right of indemnity exists there can be no right of contribution. (Code Civ. Proc., § 875, subd. (f).) A right of contribution can come into existence only after rendition of a judgment declaring more than one defendant jointly liable to the plaintiff. (Code Civ. Proc., § 875, subd. (c).)

[*1379] . .

This is what we have here. When Coca-Cola prosecuted and lost its claim for partial indemnity on the basis of comparative fault, the case had not yet gone to judgment. A claim for contribution could not have been brought. The claim for indemnification was based upon and required a determination of Lucky's ultimate liability for all or some portion of any judgment which might be awarded against Coca-Cola in the Shore action. However, the trial court determined that no part of Coca-Cola's potential liability to Shore could be apportioned to Lucky. At the same time, it refused to grant Lucky's summary judgment motion against Shore.

Nonetheless, this determination did not resolve the claim for statutory contribution which is asserted by Coca-Cola in this action. New rights accrued when the jury found Lucky and Coca-Cola jointly liable to Shore, and Coca-Cola paid the full judgment. After the judgment in favor of plaintiff Shore and against both defendants had been entered and fully satisfied by Coca-Cola, then and only then was a claim for contribution ripe. To establish entitlement to contribution, Coca-Cola was required only to show that (1) a money judgment had been rendered jointly against it and Lucky (§ 875, subd. (a)), and (2) Coca-Cola had discharged more than its pro rata share of that judgment (§ 875, subd. (c)). As a joint judgment debtor who has satisfied the judgment, Coca-Cola had an absolute right to contribution unless it had already established a right to indemnity. (Code Civ. Proc., § 875, subds. (c) and (f).) Thus, Coca-Cola's postjudgment statutory [*1381] claim for contribution was an entirely new and different claim which was unaffected by the unsuccessful attempt to establish a right to comparative or equitable indemnification.

(Coca-Cola Bottling Co. v. Lucky Stores, Inc. (1992) 11 Cal.App.4th 1372, 1378, 1380-81 [bold emphasis and underlining added].)

Here, even if judgment is entered on the Complaint in this case, the right to contribution not be ripe until that judgment is satisfied in full. Undoubtedly, this will not occur immediately after the judgment. As such, the contribution cause of action is not yet ripe; inclusion of the claim in this action would not promote judicial economy, as it would require further proceedings in this Court following not only the disposition of the underlying claims on their merits, but satisfaction of judgment.

The demurrer to the fourth cause of action is SUSTAINED without leave to amend in this action, but without prejudice to asserting the cause of action when it ripens.